

1. "The Court in the case of portions," observed Sir G. Turner, "seems to have regarded rather the *purpose* than the *words* of the instrument. In some of the cases, indeed, the Court seems almost to have carried into effect the purpose of the instrument in opposition to the words, and although in the late cases more weight has been given to the terms of the instrument, there can be no doubt that in cases of this nature, very great attention must be given to the purpose of the instrument" (*a*).

2. **General rule.**—In the first place, then, let us see in what cases an eldest child actually will be regarded as a younger child constructively, or, (which is the same thing), in what cases a younger child will be deemed the eldest child.

"Every child," said Lord Hardwicke, "except the *heir*," (*i.e.* except the one who takes the estate) "is considered in equity as a younger, and eldership, not carrying the estate along with it, is considered not such an eldership as shall exclude," viz. from sharing in the portions provided for younger children. "It would be hard, that the right of eldership should be taken away, and yet not have the benefit of a younger child" (*b*).

3. **Time of distribution.**—If, therefore, before the period fixed for *distribution of the portions*, the estate shifts either by the original limitations or by *appointment [*387] under a power contained in the settlement from the eldest child to a younger child, the younger child so taking the estate is treated as the eldest (*a*), and the eldest child losing the estate is deemed a younger child (*b*).

(*a*) Remnant *v.* Hood, 2 De G. F. & J. 413; approved by V. C. Wood, Davies *v.* Huguenin, 1 H. & M. 743.

(*b*) Duke *v.* Doidge, 2 Ves. sen. 203, note.

(*a*) Davies *v.* Huguenin, 1 H. & M. 730; *Re* Bayley's Settlement, 9 L. R. Eq. 491; Teynham *v.* Webb, 2 Ves. sen. 198; Stanhope *v.* Collingwood, 4 L. R. Eq. 286; S. C. nom. Collingwood *v.* Stanhope, 4 L. R. H. L. 43; Broadmead *v.* Wood, 1 B. C.

C. 77; Savage *v.* Carroll, 1 B. & B. 265; Simpson *v.* Frew, 5 Ir. Ch. Rep. 517; [Reid *v.* Hoare, 26 Ch. D. 363;] Jermyn *v.* Fellows, For. 93, was a case of special circumstances. In Leake *v.* Leake, 10 Ves. 477, the doctrine of Chadwick *v.* Doleman, 2 Vern. 528, would seem to have been applicable, though it was not applied. The question was not discussed.

(*b*) Duke *v.* Doidge, 2 Ves. sen. 203, note.